

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT,

Plaintiff,

-against-

CITY OF NEW YORK and DETECTIVE LAMONT
DEADERICK, SHIELD NO. 1671, 25TH PRECEINCT

Defendants.

Index No. 154567/2022

Date of Purchase: 05/20/2022

SUMMONS

Venue is based on the location of
the incident which occurred solely
in New York County

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to
serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a
Notice of Appearance, on the Plaintiff's attorney within 20 days after the service of this
summons, exclusive of the date of service (or within 30 days after the service is complete if
this summons is not personally delivered to you within the State of New York); and in the case
of your failure to appear or answer, judgment will be taken against you by default for the
relief demanded in the Complaint.

Dated: New York, New York
September 22, 2022

Yours, etc.



KENNETH E. RAMSEUR, ESQ.
Attorney for Plaintiff
299 Broadway, Suite 704
New York, New York 10007
T: (212) 964-1070
E: ramken@aol.com

To: City of New York
Respondent
100 Church Street
New York, New York 10007

Detective Lamont Deaderick, Shield No. 1671
Respondent
NYPD 25th Precinct
120 E 119th Street
New York, New York 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----
KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT,

Index No. 154567/2022

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK and DETECTIVE LAMONT
DEADERICK, SHIELD NO. 1671, 25TH PRECEINCTDefendants.

Plaintiff, KEITH WRIGHT A.K.A KEITH L.T. WRIGHT, by his attorney, Kenneth E. Ramseur, Esq., complaining of the defendants herein alleges the following upon information and belief:

1. At all times relevant hereto, Defendant CITY OF NEW YORK is a municipality existing under and by virtue of the laws of the State of New York.
2. At all times relevant hereto, defendant CITY OF NEW YORK operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.
3. At all times relevant hereto, defendant, DET. LAMONT DEADERICK (Shield No. 1671) is employed as a police officer by the Police Department of the City of New York.
4. At all times relevant hereto, defendant DET. LAMONT DEADERICK (Shield No.1671) was, upon information and belief, assigned to the 25th Precinct located at 120 East 119th Street, County, City and State of New York.
5. That all of the conditions precedent to the commencement of an action against the defendant CITY OF NEW YORK have been met. In an order dated September 7, 2022, permission was granted for the Plaintiff to file a late NOTICE OF CLAIM by Honorable J. Machelles Sweeting, a Justice of the Supreme Court, County, City and State of New York (See Exhibit 1 Order attached hereto). A Notice of Claim was filed with the City of New York on May 20, 2022. A Notice of Claimed was duly filed with the Office of the Comptroller on September 19, 2022 (See Exhibit 2 stamped copy of Notice of Claim attached hereto).

**FIRST CAUSE ACTION: POLICY NON-FEASANCE IN THE PROTECTION OF
PLAINTIFF'S CIVIL RIGHTS**

6. At all times relevant hereto, Defendant CITY OF NEW YORK is a municipality existing under and by virtue of the laws of the State of New York.
7. At all times relevant hereto, defendant CITY OF NEW YORK operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.
8. At all times relevant hereto, Defendant, DETECTIVE LAMONT DEADERICK, Shield No. 1671, is employed as a police officer by the Police Department of the City of New York.
9. At all times relevant hereto, Defendant DETECTIVE LAMONT DEADERICK, Shield No. 1671 was, upon information and belief, assigned to the 25th Precinct, located at 120 East 119th Street, County, City and State of New York.
10. At all times relevant hereto, defendant CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fourteenth Amendment to the United States Constitution. In addition, the defendant CITY OF NEW YORK, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.
11. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers of said state, city and county.
12. The defendant CITY OF NEW YORK, failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

13. That on or about September 16, 2021, and prior thereto, the CITY OF NEW YORK, in violation of 42 U.S.C. § 1983 caused the plaintiff to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiff herein.
14. On or about August 26, 2021, the plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, was lawfully and properly present in the vicinity of 138th street and 5th Ave, County, City and State of New York.
15. On or about August 26, 2021, Plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT was lawfully and properly present in the vicinity of 138th street and 5th Ave, County, City and State of New York.
16. On September 16, 2021, the defendant, Detective Lamont DEADERICK, Shield No: 1671, unlawfully and without probable cause falsely arrested, falsely imprisoned, illegally searched and seized on the Plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT at the 25th Police Precinct.
17. Immediately thereafter, aforementioned defendants, their agents, servants and employees falsely arrested and imprisoned the plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, unreasonably handcuffed him too tightly and threatened the plaintiff with the use of physical force.
18. Following said arrest, the defendant officer wrongfully and falsely accused and charged the plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, for allegedly violating VTL 600(2)(a) and VTL 600(2)(c), Leaving a Scene of an Incident without Reporting, with Personal Injury and Leaving the Scene of an incident with mere failure to Exhibit Documents, with Personal Injury under Criminal Court Docket #CR-021397-21NY.
19. The false arrest and imprisonment of the plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of the crimes with which he was charged.
20. As a result of the aforesaid arrest, plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT was forcibly hand-cuffed, detained, transported and treated as a vicious criminal incarcerated and imprisoned at facilities owned, operated, maintained and controlled by the defendant CITY OF NEW YORK and thereby deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. § 1983.

21. As a further result of the deprivation of plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT 's right to be free from the deprivation of rights guaranteed to him by the Fourteenth Amendment to the United States Constitution, he was caused to suffer injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.
22. On or about September 16, 2021, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.
23. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without him consent; that the plaintiff was at a!! times conscious of him arrest, did not consent to the assault, battery, and false arrest, and the assault, false arrest and imprisonment were not otherwise privileged.
24. The arrest and imprisonment of the plaintiff were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York. and under the authority of their office as police officers for the CITY OF NEW YORK, falsely charged the plaintiff with for allegedly violating VTL 600(2)(a) and VTL 600(2)(c), Leaving a Scene of an Incident without Reporting, with Personal Injury and Leaving the Scene of an incident with mere failure to Exhibit Documents, with Personal Injury although the defendants, acting in such capacity, knew that such charges were false.
25. That the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.
26. That the defendant CITY OF NEW YORK, its agents, servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein.

27. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause with actual malice and terminated in favor of the plaintiff.
28. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.
29. The defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with violation VTL 600(2)(a) and VTL 600(2)(c), Leaving a Scene of an Incident without Reporting, with Personal Injury and Leaving the Scene of an incident.
30. That the defendants, their agents, servants and/or employees acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before a Judge of the Criminal Court of the City of New York, County of New York.
31. Plaintiff was arrested and incarcerated in excess of 24 hours allegedly based upon the allegations of one Louis Santiago. Plaintiff further asserts that he was subjected to malicious prosecution/abuse of process from the date of his arrest, which was fraudulently procured by the Defendants. The District Attorney of New York County conducted thorough and professional investigations which lead to the plaintiff's arrest at which time all charges against the plaintiff were dismissed on November 17, 2021. The Plaintiff's criminal court file was sealed pursuant to CPL §160.50. Accordingly, this application has been timely submitted with the Statute of Limitations of one-year-and-ninety-days
32. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.
33. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in him character and reputation, was prevented from attending him usual business and avocation, was injured in him reputation in the community and the said plaintiff has been otherwise damaged.

34. That the plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and deprived of him constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C §1983, and the Constitution of the State of New York.
35. That at all times hereinafter mentioned, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.
36. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.
37. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
38. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.
39. That on or about September 16, 2021, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United

States Constitution and under the color of State law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SECOND CAUSE OF ACTION (FALSE ARREST AND IMPRISONMENT)

40. Plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, repeats and realleges each and every allegation contained herein, as though the same were set forth at length.
41. Commencing on September 16, 2021, the defendant, Detective Lamont Deaderick, Shield No: 1671, unlawfully and without probable cause falsely arrested, falsely imprisoned, illegally searched and seized on the Plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT at the 25th Police Precinct.
42. Immediately thereafter, aforementioned defendants, their agents, servants and employees falsely arrested and imprisoned the plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, unreasonably handcuffed him too tightly and threatened the plaintiff with the use of physical force.
43. Following said arrest, the defendant officer wrongfully and falsely accused and charged the plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, for allegedly violating VTL 600(2)(a) and VTL 600(2)(c), Leaving a Scene of an Incident without Reporting, with Personal Injury and Leaving the Scene of an incident with mere failure to Exhibit Documents, with Personal Injury under Docket #CR-021397-21NY.
44. The false arrest and imprisonment of the plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of the crimes with which he was charged.
45. As a result of the aforesaid arrest, plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT was forcibly hand-cuffed, detained, transported and treated as a common criminal incarcerated and imprisoned at a facility owned, operated, maintained and controlled by the defendant CITY OF NEW YORK and timely deprived of him rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983. Plaintiff, while incarcerated was threatened by other inmates with bodily harm which placed the Plaintiff in fear of his safety and life expectancy.
46. As a further result of the deprivation of plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT 's right to be free from the deprivation of rights guaranteed to him by the Fourteenth Amendment to the United States Constitution, he was caused to suffer

injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.

47. On or about September 16, 2021, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.
48. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times conscious of his arrest and did not consent to the false arrest, assault and battery.
49. The arrest and imprisonment of the plaintiff were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as police officers for the CITY OF NEW YORK, falsely charged the plaintiff with for allegedly violating VTL 600(2)(a) and VTL 600(2)(c), Leaving a Scene of an Incident without Reporting, with Personal Injury and Leaving the Scene of an incident with mere failure to Exhibit Documents, with Personal Injury although the defendants, acting in such capacity, knew that such charges were false.
50. That the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.
51. That the defendant CITY OF NEW YORK, its agents, servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein.
52. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious and without any reasonable or probable cause whatsoever; that the

commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause with actual malice and terminated in favor of the plaintiff.

53. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.
54. That at all times relevant hereto, the defendants owed a duty directly to plaintiff to conform their conduct to a standard established by law for the protection of plaintiff.
55. That at all times relevant hereto, the defendants failed to act, protect and safeguard the plaintiff.
56. That at all times relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.
57. That the defendants, their agents, servants and/or employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations. If Police Officer Deaderick had conducted any kind of reasonable investigation it would've been obviously apparent to him that a crime had not occurred and he had no probable cause to arrest the plaintiff.
58. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.
59. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the County, City, and State of New York, to be arraigned. As set forth previously, a District Attorney of New York County conducted a thorough and responsible investigation of plaintiff's arrest which revealed that Plaintiff had committed no crime. The same information available to the District Attorney of New York County was readily available to Police Office Deaderick if he sought to be more diligent in exercising his role as a Police Officer.
60. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

61. By reason of his false arrest and imprisonment, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

THIRD CAUSE ACTION (MALICIOUS PROSECUTION)

1. Plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, repeats and realleges each and every allegation contained herein, as though the same were set forth at length.
2. Commencing on September 16, 2021, the defendant, Detective Lamont DEADERICK, Shield No: 1671, unlawfully and without probable cause falsely arrested, falsely imprisoned, illegally searched and seized on the Plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT at the 25th Police Precinct.
3. Immediately thereafter, aforementioned defendants, their agents, servants and employees falsely arrested and imprisoned the plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, unreasonably handcuffed him too tightly and threatened the plaintiff with the use of physical force.
4. Following said arrest, the defendant officer wrongfully and falsely accused and charged the plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, for allegedly violating VTL 600(2)(a) and VTL 600(2)(c), Leaving a Scene of an Incident without Reporting, with Personal Injury and Leaving the Scene of an incident with mere failure to Exhibit Documents, with Personal Injury under Docket #CR-021397-21NY.
5. The false arrest and imprisonment of the plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of the crimes with which he was charged.
6. As a result of the aforesaid arrest, plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned at a facility owned, operated, maintained and controlled by the defendant CITY OF NEW YORK and timely deprived of him rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983.
7. As a further result of the deprivation of plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT 's right to be free from the deprivation of rights guaranteed to him by the Fourteenth Amendment to the United States Constitution, he was caused to suffer injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.

8. On or about September 16, 2021, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.
9. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times conscious of his arrest, did not consent to the assault, battery, and false arrest, and the assault, false arrest and imprisonment were not otherwise privileged.
10. The arrest and imprisonment of the plaintiff were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as police officers for the CITY OF NEW YORK, falsely charged the plaintiff with for allegedly violating VTL 600(2)(a) and VTL 600(2)(c), Leaving a Scene of an Incident without Reporting, with Personal Injury and Leaving the Scene of an incident with mere failure to Exhibit Documents, with Personal Injury although the defendants, acting in such capacity, knew that such charges were false.
11. That the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.
12. That the defendant CITY OF NEW YORK, its agents, servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein.
13. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause with actual malice and terminated in favor of the plaintiff.

14. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.
15. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.
16. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in him character and reputation, was prevented from attending him usual business and vocation, was injured in him reputation in the community and the said plaintiff has been otherwise damaged.
17. As a result of the aforesaid malicious prosecution, the plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FOURTH CAUSE OF ACTION (COMMON LAW NEGLIGENCE)

18. Plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, repeats and realleges each and every allegation contained herein, as though the same were set forth at length.
19. The defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.
20. The defendant DETECTIVE LAMONT DEADERICK was negligent in failing to use reasonable care in the arrest, detainment, confinement, and prosecution of the plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT on or about September 16, 2021.
21. The defendant was negligent in failing to use reasonable care in the arrest, detainment, confinement, and prosecution of the plaintiff,
22. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological

damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

23. By reason of the negligence of the defendants, the plaintiff KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

**SIXTH CAUSE ACTION: VIOLATION OF INDIVIDUAL'S RIGHT TO
UNREASONABLE SEARCH & SEIZURES CONSTITUTION**

24. Plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT, repeats and realleges each and every allegation contained herein, as though the same were set forth at length.
25. The defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.
26. The defendant DETECTIVE LAMONT DEADERICK was negligent in failing to use reasonable care in the arrest, detainment, confinement, and prosecution of the plaintiff, KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT on or about September 16, 2021.
27. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.
28. That by reason of his unlawful search and seizure, the plaintiff, KEITH

WRIGHT A.K.A. KEITH L.T. WRIGHT has been damaged in an amount exceeding the jurisdictional limits of this Court, to be determined upon the trial of this action.

WHEREFORE, plaintiff demands judgment against the defendants on Each Cause of Action in amounts to be determined upon the trial of this action, together with costs and interest, and additionally, plaintiff demands in respect of all Causes of Action, the additional total sum of \$5,000,000. 00 in punitive damages and attorney fees pursuant to 42 U.S.C. §1988 against Detective Lamont Deaderick, Shield No. 1671 and for such other, further and different relief as to this Court may seem just and proper.

Dated: New York, New York
September 22, 2022

Yours, etc.



KENNETH E. RAMSEUR, ESQ.
Attorney for Plaintiff
299 Broadway, Suite 704
New York, New York 10007
T: (212) 964-1070
E: ramken@aol.com

To: City of New York
Respondent
100 Church Street
New York, New York 10007

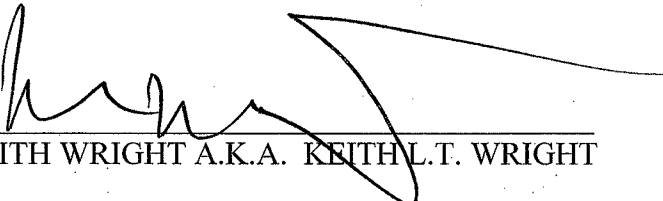
Detective Lamont Deaderick, Shield No. 1671
Respondent
NYPD 25th Precinct
120 E 119th Street
New York, New York 10035

VERIFICATION

STATE OF NEW YORK)
 : SS.:
COUNTY OF NEW YORK)

KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT being duly sworn, deposes and says:

I am the plaintiff in the within action. I have read the foregoing Complaint and know the contents thereof; that the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters I believe them to be true.



KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT

On the 22nd day of September in the year 2022, before me, the undersigned, personally appeared

KEITH WRIGHT A.K.A. KEITH L.T. WRIGHT

personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name(s) is (are) subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their capacity(ies), and that by his/her/their signature(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument.



Notary Public

KENNETH E. RAMSEUR
Notary Public, State of New York
No. 02RA4633818
Qualified in Kings County
Commission Expires April 30, 20**26**

KENNETH E. RAMSEUR

NOTICE OF ENTRY

PLEASE take notice that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on

Dated, _____

Yours, etc.

KENNETH E. RAMSEUR

Attorney for

Office and Post Office Address

299 BROADWAY

NEW YORK, N.Y. 10007

To

Attorney(s) for

PLEASE take notice that an order of which the within is a true copy will be presented for settlement to the Hon. one of the judges of the within named Court, at

Dated, _____

at

M.

Yours, etc.

KENNETH E. RAMSEUR

Attorney for

Office and Post Office Address

299 BROADWAY

NEW YORK, N.Y. 10007

To

Attorney(s) for

NOTICE OF SETTLEMENT

Index No. 154567

Year 2022

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK

KEITH WRIGHT AKA. KEITH L.T. WRIGHT

Petitioner

-against-

CITY OF NEW YORK, and DETECTIVE LAMONT DEADRICK, SHIELD NO. 1671, 25TH PRECINCT

Respondents.

SUMMONS AND

VERIFIED COMPLAINT

Signature (Rule 130-1.1-a)

Kenneth E. Ramsey

Print name beneath: Kenneth E. Ramsey

KENNETH E. RAMSEUR

Attorney for Petitioner

Office and Post Office Address, Telephone

299 BROADWAY

NEW YORK, N.Y. 10007

(212) 964-1070

FAX (212) 355-2742

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated _____

Attorney(s) for

1506 - Ramsey/Centor Inc., NYC 10013